

LEITNER-HERNANDEZ, et al v LAKESIDE VENTURES, LLC, et al

24CV47786

PLAINTIFFS' DEMURRER TO ANSWER

This is a real property dispute involving 1475 Railroad Flat Road, Mokelumne Hill, California, 95245 ("Property"). Now before the Court is the demurrer brought by Plaintiff/Cross-Defendant Vicki Leitner-Hernandez ("Vicki") and Miguel Hernandez ("Miguel") as to the Answer purportedly brought by Lakeside Mobile Home Estates, LLC ("Lakeside") and Bonnie Hurley ("Hurley")(collectively "Cross-claimants").

On March 21, 2025, the Court issued a provisional tentative ruling, allowing Lakeside until April 16, 2025, to find counsel. On April 1, 2025, Lakeside submitted notice of substitution of counsel.

The Court adopts the provisional ruling. Specifically, the Court finds that the filing of an Amended Answer on March 6, 2025, moots the demurrer to the original Answer and on this basis the demurrer is **OVERRULED**.

The Clerk shall provide notice of this Ruling to the parties forthwith. No further formal Order is required.

JOHNSON v CITY OF ANGELS, et al

24CV47321

**PLAINTIFF'S MOTION TO REOPEN CASE; PLAINTIFF'S MOTION FOR
PERMISSION TO FILE SECOND AMENDED COMPLAINT; PLAINTIFF'S MOTION
FOR RESTRAINING ORDER**

On or about April 16, 2024, Plaintiff filed a Complaint alleging "Intentional Tort: building of fence in curtilage making curtilage inaccessible and car garages inaccessible" and "Intentional Tort: Libel, slander telling public that there are dangerous people, perverts, drug dealers, addicts, sex offenders, criminals, persons dangerous to minors, living at plaintiffs house, as well as other accusations." (Plaintiff's Complaint). Individual defendants are Scott McNurlin ("McNurlin"), Diane Bateman ("Bateman"), Christy Miro ("Miro"), Jenny Eltringham ("Eltringham"), Timothy Randall ("Randall"), and Alvin Broglio ("Broglio") (collectively "Individual Defendants.>").

Before the Court is Plaintiff's Motion to Reopen Case, Plaintiff's Motion for Permission to File Second Amended Complaint, and Plaintiff's Motion for Restraining Order.

None of the Motions comply with Local Rule 3.3.7. All matters noticed for the Law & Motion calendar shall include the following language in the notice:

3 3 7 Tentative Rulings (Repealed Eff 7/1/06, As amended 1/1/18) All parties appearing on the Law and Motion calendar shall utilize the tentative ruling system. Tentative Rulings are available by 2:00 p.m. on the court day preceding the scheduled hearing and can be accessed either through the court's website or by telephoning 209-754-6285. The tentative ruling shall become the ruling of the court, unless a party desiring to be heard so advises the Court no later than 4:00 p.m. on the court day preceding the hearing including advising that all other sides have been notified of the intention to appear by calling 209-754-6285. Where appearance has been requested or invited by the Court, all argument and evidence is limited pursuant to Local Rule 3.3. All matters noticed for the Law & Motion calendar shall include the following language in the notice:

Pursuant to Local Rule 3.3.7, the Court will make a tentative ruling on the merits of this matter by 2:00 p.m. the court day before the hearing. The complete text of the tentative ruling may be accessed on the Court's website or by calling 209-754-6285 and listening to the recorded tentative ruling. If you do not call all other parties and the Court by 4:00 p.m. the